

## Merchant Highlights – Particular Conditions (the “Particular Conditions”)

This merchant highlights agreement (the “**Agreement**”) is entered into as of the \_\_\_\_\_  
(the “**Effective Date**”) between:

**Integrated Marketplace SAL**, a Lebanese Joint Stock Company duly registered at the Commercial register of Beirut under the number /1022209/, represented for the purpose of this Agreement by its Chairman General Manager Mr. Tamim Al Khalfah (the “**First Party**” or “**Toters**”),

AND

B.R.I.M.F s.a.l, a Lebanese company duly registered at the Commercial Register of Beirut under the number /\_\_\_\_\_/, represented for the purpose of this Agreement by Neo beirut (the “**Second Party**” or the “**Merchant**”).

The First Party and the Second Party are each referred to herein individually as the **Party** and collectively as the **Parties**.

The Parties have mutually agreed on the following:

### **Article 1: Structure and Definitions**

1. All capitalized terms and conditions used herein and not defined shall bear the meaning ascribed to them in the General Conditions attached hereto as Schedule 1 (the “**General Conditions**”).
2. These Particular Conditions, together with the General Conditions and the Merchant Agreement, form an integral part of the Agreement.

### **Article 2: Selected Services**

The Merchant wishes to benefit from the following Exposure Methods as per the Merchant’s request (as made available by Toters):

- To be shown on the banner of Toters App,
- To be shown in the search field in priority over other Merchants when the Customer searches for any item available in the Merchant’s store,
- To be shown in priority over other Merchants in the Merchants’ listing on the homepage of Toters App.

### **Article 3: Merchant’s Information**

3. The Merchant’s contact person details are as stated below:
  - Name: Freddy Khoury
  - Phone number (that must have a WhatsApp on it): 03361515
  - Email: info@neobeirut.com
4. For the avoidance of any doubt, the Merchant has appointed the above-mentioned contact person to contact Toters with respect to the following:
  - Loading the Merchant’s Service Provider Account pursuant to Article 4 of the General Conditions,
  - Dedicating a maximum number of credits to be used from the Service Provider Balance for a specific Exposure Method, and
  - Addressing any other information to Toters for the latter’s action.

The above-mentioned requests from the contact person on behalf of the Merchant are considered sufficient for Toters action accordingly.

**Article 4: Price of the credits in the Service Provider Account**

1. The price of the credits purchased by the Merchant in the Service Provider Account shall be (i) paid in cash by the Merchant to Toters, or (ii) deducted directly by Toters from the Merchant's Toters Wallet, through any one or more of the purchase methods in accordance with Article 4 of the General Conditions.
2. In addition to the above-mentioned price of the credits, the Merchant shall pay 11% of the said price as VAT on every Transaction along with all other applicable governmental sales taxes.

**Article 5: Originals**

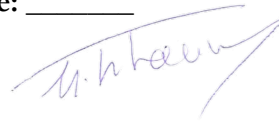
This Agreement has been signed in 2 original copies, each Party keeping one for use in case of need.

**First Party:**  
**Integrated Marketplace S.A.L.**

**Name:** Tamim Al Khalfah  
**Function:** Chairman General Manager  
**Date:** \_\_\_\_\_  
**Signature:** \_\_\_\_\_

**Second Party:**  
**Neo Beirut**

**Name:** Freddy Khoury  
**Function:** General manager  
**Date:** 8/4/2026  
**Signature:** \_\_\_\_\_



## Schedule 1: General Conditions (the “General Conditions”)

### 1. Definitions

**Agreement.** The Particular Conditions, these General Conditions and the Merchant Agreement.

**Customer.** The persons placing orders through the Toters App (as defined below) or the persons placing orders through a merchant that requested a DaaS service (as particularized in the below definition of Toters Services).

**Exposure Method.** Shall have the meaning set out in Section 3.1.

**Merchant Agreement.** The merchant agreement previously signed between you and Toters.

**Merchant Highlights Service.** The service granted by Toters through the Service Provider and through which the Merchants can benefit from more exposure to the Customers on Toters App.

**Merchant(s) or you.** The store that benefits from the Toters Services by listing its products on the Toters Platform to avail itself of the Toters Services and receive and process orders from the Customers.

**Particular Conditions.** The particular conditions relating to these General Conditions and set out here above.

**Service Provider.** The service provider who integrates the information provided by Toters (name of your store, sales, Customers’ sales history, etc.) to a retail media ads platform in order to complete measurements and performance assessments for the Merchant Highlight Service.

**Service Provider Account.** Your account on the Service Provider Platform (as defined below) which will be managed by Toters on your behalf upon, and in accordance with, your written instructions, for the purpose of providing the Merchant Highlights Service to you.

**Service Provider Balance.** The balance which is displayed electronically to the credit of your Service Provider Account, and denominated in a number of credits.

**Service Provider Platform.** The platform owned and operated by the Service Provider in which Toters shall create your Service Provider Account to enable you to benefit from the Merchant Highlights Service through the purchase of credits.

**Toters Account.** Your merchant account on the Toters Merchant Application (as defined below).

**Toters App.** A mobile and web application of Toters which allows the Customers to view Merchants and their products listings and place orders.

**Toters Merchant Application.** A mobile and web application of Toters which allows you to receive / view Customers’ orders coming through the Toters App, and request DaaS services (as particularized in the below definition of Toters Services).

**Toters Platform.** A software platform developed and operated by Toters that lists Merchants, presents them to the Customers through the Toters App, and allows the Customers to place orders and matches couriers with orders to conduct delivery services.

**Toters Services.** The services provided by Toters through the Toters Platform including promotion, advertising, marketing, mobile-e-commerce-as-a-service (MaaS), and delivery-fleet-as-a-service (DaaS).

**Transaction(s).** The purchase of credits in your Service Provider Balance in order to benefit from the Merchant Highlights Service.

**Toters Wallet.** The Lebanese Pounds balance which is displayed electronically to the credit of your Toters Account, and which reflects the

amount in Lebanese Pounds that is owed by you to Toters and by Toters to you in application of the Merchant Agreement.

### 2. Contractual Agreement

- 2.1 The Agreement constitutes a legally binding agreement between you and Toters. The Particular Conditions, together with the General Conditions and the Merchant Agreement, form an integral part of the Agreement.
- 2.2 These General Conditions supersede any prior terms, agreements or arrangements with you in respect of the Merchant Highlights Service.
- 2.3 By accessing or using the Merchant Highlights Service, you:
  - Agree that you have read, understood, accepted and agreed to these General Conditions;
  - Agree that the representations made by you in the Merchant Agreement will apply equally in respect of the Merchant Highlights Service;
  - Acknowledge that when you select Merchant Highlights Service as an exposure method on Toters App, any payment obligation to the Service Provider will be settled (i) in cash by you to Toters, or (ii) by Toters on your behalf by debiting the total amount to be paid to the Service Provider, as reflected in your Toters Account at the time of completing the said Transaction, from your Toters Wallet, in exchange for credits to be added in your Service Provider Balance.
  - For the avoidance of doubt, the value of your purchased credits shall be displayed in your Service Provider Balance in American Dollars based on the Lebanese Pounds/American Dollars conversion rate stated in Toters App;
  - Acknowledge and agree that the purpose of the Merchant Highlights Service is to provide an additional exposure method on Toters App.
- 2.4 For the avoidance of any doubt, you acknowledge and agree that Toters does not guarantee in any way an increase in the sales of your store as a result of your use of the Merchant Highlights Service.

### 3. Use of Merchant Highlights Service

- 3.1 The Merchant Highlights Service includes the following exposure methods:
  - To be shown on the banner of Toters App,
  - To be shown in the search field in priority over other Merchants when the Customer searches for any item available in your store,
  - To be shown in priority over other Merchants in the Merchants’ listing on the homepage of Toters App, (Each an “**Exposure Method(s)**”).
- 3.2 The Exposure Methods can be modified and/ or disabled by Toters at any time and for any reason. In the latter case, Toters will notify you through your respective account manager or any other method made available by Toters and the credits in your Service Provider Balance used for a specific modified and / or disabled Exposure Method can be used for any other Exposure Method selected by you.
- 3.3 You must have an active and valid Toters Account to use the Merchant Highlights Service.
- 3.4 Each Exposure Method can be selected and used by you provided that the number of credits available in your Service Provider Balance is enough and allows you to select and use such Exposure Method. The said relevant credits are to be purchased by you in accordance with Article 4 of the General Conditions.
- 3.5 For the avoidance of doubt, the priority mentioned in Article 3.1 above is measured based on the number of credits in your Service Provider Account dedicated for the respective Exposure Method. The higher the number of credits available in your Service Provider Account dedicated for the respective Exposure Method, the more you might gain priority over other Merchants on Toters App for the respective Exposure Method.
- 3.6 Each time you benefit from the Merchant Highlights Service (i.e., your store is displayed in the banner of Toters App, or you are shown in the search field in priority over other Merchants and the Customer clicks on your store, or you are shown in priority over other Merchants in the Merchants’ listing on the homepage of Toters App and the Customer clicks on your store, etc.), a number of credits, as stated in the Service

- Provider Platform is deducted from your Service Provider Account.
- 3.7 Toters does not levy any additional charges or fees in respect of your use of the Merchant Highlights Service.
- 3.8 You may review your Transactions completed with respect to the Merchant Highlights Service through your account manager at Toters who can provide you, upon your request, with your Service Provider Balance along with the history of all your completed Transactions.

#### **4. Loading the Service Provider Account**

- 4.1 You may request Toters to purchase a certain number of credits in your Service Provider Account, the price of which shall be (i) paid in cash by you to Toters, or (ii) deducted directly by Toters from your Toters Wallet, through any one or more of the following purchase methods:
- Through your respective account manager at Toters who is in charge of managing your Service Provider Account, subject to your written instruction stating clearly the Exposure Method from which you wish to benefit and the number of credits that you wish to purchase. The said written instruction is to be sent by the contact person mentioned in Article 3 of the Particular Conditions through WhatsApp message or email to your account manager at Toters; or
  - Through any other purchase method made available when using the Merchant Highlights Service by Toters on the Toters App.

In addition to the above-mentioned price of the credits, you should pay 11% of the said price as VAT for every Transaction along with all other applicable governmental sales taxes

- 4.2 Toters may in its sole and absolute discretion choose to refuse a request to purchase credits for your Service Provider Account, including (without limitation) when the latter would result in the aggregate value stored in your Toters Wallet dropping below any value permitted by Toters App.
- 4.3 Toters (in its sole and absolute discretion) may, at any time (including at the time of completing a Transaction), notify you that it has imposed a minimum amount that should be available to the credit of your Toters Wallet.

#### **5. Expiry of Service Provider Balances**

- 5.1 Subject to Section 9 (Changes to the General Conditions), your Service Provider Balance will not expire and will be available for an undetermined period in your Service Provider Account unless Toters puts an end to the Merchant Highlights Service for any reason whatsoever as mentioned in Article 6.1 of the General Conditions.
- 5.2 Bonus credits, e.g., number of credits granted to you by Toters in case of occurrence of any problems during the completion of your Transaction or in connection therewith in order to compensate the said problem, may be subject to an expiration date which will be communicated to you via Toters App.

#### **6. Termination of the Merchant Highlights Service**

- 6.1 Toters may immediately terminate these General Conditions with you, or generally cease offering or deny access to the Merchant Highlights Service, at any time and for any reason, without the need for any notice or proceedings. For the avoidance of doubt, in such case, your available Service Provider Balance is redeemable in your Toters Wallet.
- 6.2 In any case other than the one stated in Article 6.1 (including when your Merchant Agreement is terminated for any reason), once purchased and credited to your Service Provider Account, the credits in your Service Provider Balance are non-refundable, and may not be redeemed for cash.

#### **7. Unauthorized Use of Your Service Provider Account and Fraudulent Activity**

- 7.1 You agree and undertake to notify Toters immediately upon becoming aware of any fraudulent activity or theft in your Toters Account in general and in your Toters Wallet in particular.
- 7.2 You agree that Toters is not responsible for unauthorized use of the

Merchant Highlights Service. Toters reserves the right (in its sole and absolute discretion) to suspend or void any Transaction or use of the Merchant Highlights Service, where Toters suspects that the Service Provider Balance was obtained fraudulently, unlawfully, illegally, or that you are otherwise in violation of these General Conditions.

#### **8. Conflict with the Merchant Agreement**

- 8.1 In the event of a conflict between these General Conditions and the Merchant Agreement, in respect of the Merchant Highlights Service, these General Conditions will prevail.
- 8.2 The provisions of the Merchant Agreement relating to the “Services”, “Marketing and Communication” and “Confidential Information and Personal Data” will apply equally to the General Conditions.

#### **9. Changes to the General Conditions**

You acknowledge and agree that Toters may modify any of the General Conditions at any time, with or without notice to you, subject to applicable law. In case of modification of the General Conditions, Toters will post the most current version of the General Conditions on its website. By continuing to use or access the Merchant Highlights Service after the revised General Conditions come into effect, you are deemed to have agreed to be bound by the revised General Conditions. At our discretion as to whether a revision to the General Conditions is substantive, we may notify you about a revision of the General Conditions in some way (for example, by email or a posting on our website).

#### **10. Governing Law and Jurisdiction**

The Agreement will be governed by the Laws of the Lebanese Republic and any dispute relating to, or arising out of, the Agreement will be submitted to the jurisdiction of the courts of Beirut, Lebanon.